

**Writ Petition No.1873 of 2022**

Dr. Talal Khurshid Bhatti

The Punjab Healthcare Commission, etc.

24.09.2025 M/s Usman Nasir Awan and Raheel Riaz, Advocates for the petitioner.  
Mr. Waqas Umar, AAG.  
Mr. Muhammad Tahir-ul-Islam, Law Officer for the Punjab Health Care Commission/respondents No.1 & 2.  
M/s Ch. Ishtiaq Ahmad and Munir Ahmad Malik, Advocates for respondent No.3.

Through instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has made the following prayers:-

*“In view of the above, it is most respectfully prayed that the Impugned Order dated 24.09.2021 passed by respondent No.2 may be declared as illegal and void and the same may kindly be set aside.*

*It is further prayed that by holding the complaint of the petitioner as within time, a direction may also be given to the respondent authority (Punjab Healthcare Commission) to initiate the investigation against the respondent No.3 upon complaint filed by the petitioner in accordance with the mandate of the Punjab Healthcare Commission Act 2010.”*

2. In brief, the essential facts for disposing of this petition are that on 11.06.2021, the petitioner filed a complaint against respondent No.3 (Dr. Kamran Butt) with the Punjab Healthcare Commission, claiming that on 12.09.2018, he was admitted to Doctors Hospital & Medical Centre for surgery on his left shoulder. The respondent No.3 visited and diagnosed a humerus implant failure and suggested surgery. Subsequently, respondent No.3 performed surgeries on the petitioner on 13.09.2018 and 19.10.2019. The petitioner filed a

complaint against respondent No.3 with the PHC, alleging maladministration, malpractice, and medical negligence. The Commission took notice and issued a summons to respondent No. 3. In response, respondent No. 3 filed an application on 14.07.2021, claiming that the complaint was barred by time under section 23(2) of the Punjab Healthcare Commission Act, 2010. After hearing the parties, respondent No. 2 disposed of the complaint, declaring it time-barred, vide order dated 24.09.2021. Aggrieved, the petitioner appealed to the learned District & Sessions Judge, Lahore, but the appeal was dismissed. Therefore, this petition.

3. Learned counsel for the petitioner submitted that, as per section 23(2) of the Punjab Healthcare Commission Act, 2010, the limitation to file a complaint is within 60 days, which starts from the date of knowledge of the cause of action. Further submitted that the PHC wrongly inferred the date of knowledge of the cause of action; added that the complaint filed by the petitioner was well within time and the same was not time-barred, and prayed for acceptance of the instant petition.

4. Conversely, learned counsel for respondent No.3 and learned law officer representing respondents No.1 and 2 submitted that the complaint filed by the petitioner was time-barred; the order has rightly been passed, and they prayed for dismissal of the instant petition.

5. Heard. Record perused.

6. On perusal of the record, it reveals that the petitioner filed a complaint with the Punjab Healthcare Commission against respondent No.3 on 11.06.2021, wherein notices were issued to the parties. In response to the notice, respondent No. 3 filed an application on 14.07.2021 before the Punjab Healthcare Commission, alleging that the complaint is time-barred. The Punjab Healthcare Commission sought a reply from the petitioner to the said application. The petitioner submitted a reply on 09.08.2021,

contending that the complaint is not time-barred. In Para No.27 of the complaint (available at Page-33 of instant petition), the petitioner himself submitted that the cause of action in the instant matter initially accrued on 13.09.2018 when the negligent surgery was performed by Dr. Kamran Butt, thereafter, accrued on 19.10.2019 when the IM Nail was removed through another surgery where the tear to the rotator cuff could have been observed and treated.

7. Subsequently, when the question of limitation was taken by respondent No.3, the petitioner filed a reply to the application of respondent No.3, wherein he introduced three different dates, i.e., 07.06.2020, when the X-ray of the Islamic Diagnostic Centre was received, and the expert opinions obtained by the petitioner from Dr. Muhammad Waseem and Dr. Mustafa Javed Bhalli dated 17.07.2020, and 05.08.2020 respectfully. It is relevant to mention that the petitioner filed a complaint on 11.06.2021, and in para 27, the cause of action was stated to have accrued. Para No. 27 reads as follows: -

**“27. That the cause of action in the instant matter initially accrued on 13.09.2018 when the negligent surgery was performed by Dr. Kamran Butt, thereafter accrued on 19.10.2019 when the IM Nail was removed through another surgery where the tear to the rotator cuff could have been observed and treated. Thereafter, the cause of action has been recurring as the rotator cuff tear caused by negligent surgeries performed by Dr. Kamran Butt still exists and has worsened, as also acknowledged by different consultants through their expert opinions, and keeps on worsening each day by agonizing and distressing the complainant as well as interfering in the complainant’s daily routine work being a professional doctor in Gastrointestinal Endoscopy. The cause of action is De Die In Diem.”**

The petitioner had already explicitly stated that the cause of action was accrued on 13.09.2018, when the negligent surgery was performed by Dr. Kamran Butt, and thereafter on 19.10.2019, when

the IM Nail was removed during another surgery, both of which were time-barred for 31 months and 13 months, respectively. The learned counsel for the respondent No. 3 submitted that the petitioner also filed “suit for Damages for Rupees 500,000,000/- (50 Crore) on account of medical negligence” titled Dr. Talat Khurshid Bhatti versus Dr. Kamran But before the civil courts at Lahore on 04.10.2021, wherein in para 27, the exact cause of action was mentioned. The learned counsel for the petitioner is unable to rebut it. Before proceeding further, for ready reference, Section 23(2) of the Punjab Healthcare Commission Act, 2010 is reproduced hereunder:-

### **Section 23**

**(1)-----**

**(2)An aggrieved person may, within sixty days from the date of knowledge of the cause of action, file a complaint against a healthcare service provided or healthcare establishment by submitting an application in writing supported by an affidavit of the aggrieved person.**

**(3)-----**

If we consider the cause of action accrued on 13.09.2018 and 19.10.2019, respectively, as narrated in the complaint, which was filed with the Punjab Healthcare Commission on 11.06.2021, then the complaint was filed with a delay of 31 months and 13 months, respectively, excluding the period of filing the complaint, i.e., 60 days. If the dates of cause of action are taken from the reply submitted by the petitioner, i.e., 07.06.2020, when the X-ray of the Islamic Diagnostic Centre was received, and the expert opinions obtained by the petitioner from Dr. Muhammad Waseem and Dr. Mustafa Javed Bhalli dated 17.07.2020, and 05.08.2020, respectively, then the delays become 10 months, 9 months, and 8 months, respectively, excluding the period of filing the complaint. In

any eventuality, the case is time-barred as mentioned above. The dates that the petitioner mentioned in his reply to the application of respondent No. 3 were already in the knowledge of the petitioner at the time of submitting the complaint. Still, he did not mention it in his complaint. He did not even mention this fact in the “suit for Damages”. Admittedly, the petitioner subsequently introduced dates on which he received opinions from Dr. Muhammad Waseem and Dr. Mustafa Javed Bhalli, dated 17.07.2020 and 05.08.2020, respectively, when respondent No. 3 raised a plea that the complaint was barred by limitation. This cannot be considered sufficient cause to seek condonation of the delay in the filing of the complaint. Condonation of delay is not a matter of right, and the petitioner has to set out the case showing sufficient reasons that prevented him from coming to the Commission within the stipulated period of limitation. It is a fact that the petitioner is a doctor and is aware of the harm he has suffered. However, he continued to try to justify his delay by consulting various doctors, and based on their opinions, it cannot be determined whether the complaint was filed on time. Therefore, the commission has rightly disposed of the petitioner's complaint by ruling that the case is time-barred. The learned counsel for the petitioner has failed to point out any illegality or legal infirmity in the impugned order dated 24.09.2021, passed by the Punjab Healthcare Commission, warranting interference by this Court.

8. Given the above, the instant petition stands dismissed.

**(Aalia Neelum)**  
**Chief Justice**

**Approved for reporting**

**Chief Justice**

*This order has been dictated,  
pronounced, prepared, and  
signed on 24.09.2025  
Ikram\**